



Notification Waiver Determination

INPEX – minority interests in Beetaloo development projects

Acquisition	INPEX Corporation (INPEX), via wholly owned subsidiaries INPEX FSDA N&S Pty Ltd and INPEX BCD Pty Ltd, applied for a notification waiver in respect of its proposed acquisition of: • a 20% interest in the Beetaloo Central Development project • an 11.25% interest in the First Strategic Development Area South project, and • an 11.25% interest in the FSDA North project (together, the Projects) via a farm-in agreement with Daly Waters Energy LP (DWE), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 June 2026

Parties to the Acquisition	The acquirer, INPEX, is an oil and gas exploration and production company headquartered in Tokyo, Japan. Its main business includes research, exploration, development, production and sales of oil, natural gas and other mineral resources, as well as investment and lending to the companies engaged in these activities. In Australia, INPEX: • owns a majority stake and operates the Ichthys LNG project in offshore Western Australia • has a minority participating interest in Prelude FLNG Project in offshore Western Australia • has a minority participating interest in Darwin LNG Project, located in the Northern Territory • has a minority participating interest in the Ravensworth Oil Field in offshore Western Australia • has a 50% interest in Potentia Energy. Furthermore, INPEX is engaged in oil and gas exploration through interests in leases in and around Western Australia and the Northern Territory, principally in the area surrounding the Ichthys LNG Project. INPEX also supplies LNG in the global seaborne LNG industry and natural gas in the Northern Territory.
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	The Projects, which are the target of the Acquisition, are located within the Beetaloo Sub-basin, an undeveloped but prospective shale gas region in the Northern Territory. The Projects would be operated as an unincorporated joint venture between DWE (via its subsidiaries), Tamboran Resources Corporation (via its subsidiaries) and INPEX (acting via its subsidiaries) (together, the Joint Venture Parties), and would be governed by separate joint operating agreements. The acquirer, INPEX, would acquire a minority interest in each of the Projects and would not be a project operator for any of the Projects. Pursuant to the terms and conditions of the Retention Licences that will be obtained for each Project and a joint operating agreement, the Joint Venture Parties will explore for, and undertake appraisal activities to confirm a commercial resource of conventional and unconventional oil and gas resources within each Project area.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular a. the Acquisition would lead to a very small increase in INPEX's share of gas or LNG production in Australia (to the extent gas or LNG is produced from the Projects) b. there are alternative producers and suppliers of natural gas or LNG in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act